lately in use. I am not an enemy to diverting exercise: yet the riot, brawling, and profaneness, that are the usual consequences of their play; the circumstances of debtors gaming away the property of their creditors, which I know they have done in some prisons to a considerable amount; accomplishing themselves in the frauds of gamblers, who, if they be not themselves prisoners, are sure to haunt where gaming is practised; hindering their fellow-prisoners from walking in the courts while they play, of which inconvenience I have heard them complain: these seem to me cogent reasons for prohibiting all kinds of gaming within the walls of a prison.

Loading prisoners with heavy irons, which make their walking, and even lying down to sleep, difficult and painful, is another custom which I cannot but condemn. In some county gaols and even bridewells the women do not escape this severity: but in London they do: and therefore it is not necessary in the country.[1] The practice must be mere tyranny: unless it proceed from avarice; which I rather suspect; because county gaolers do sometimes grant dispensations, and indulge their prisoners, men as well as women, with what they call "the choice of irons," if they will pay for it.

The author of *A Letter to Sir Robert Ladbroke* on prisons (particularly on Newgate, which was then to be rebuilt) cites in page 79, the opinion of Lord Coke, Horn's *Mirror of Justice*, etc., against this oppression; and adds afterwards, "The learned editor of *Hale's History of the Pleas of the Crown* likewise declares, that fetters ought not to be used, unless there is just reason to fear an escape, as where the prisoner is unruly, or makes an attempt to that purpose; otherwise, notwithstanding the common practice of gaolers, it seems altogether unwarrantable, and contrary to the mildness and humanity of the laws of England, by which gaolers are forbid to put their prisonors to any pain or torment."

The gentlemen of the gaol committee, who distinguished themselves by an accurate and zealous inquiry into the abuses practised by gaolers[2]; in their report concerning the Fleet

[1] Lord Loughborough, Lent assize 1782, at Thetford laid a fine of £20 on the gaoler of Norwich Castle, for putting irons on a woman.

[2] This committee is celebrated by Thomson, in his poem entitled *Winter*, p. 340, etc., present edition 1738.

> . . . Can I forget the generous few,
> Who, touched with human woe, redressive sought
> Into the horrors of the gloomy jail?
> Unpitied, and unheard, where misery moans;
> Where sickness pines . . .

prison, 20th March, 1728, after mentioning a petition presented to the judges by one who had been put in irons by the wardens, informs us, that the judges reprimanded the wardens, and declared, that "a gaoler could not answer the ironing of a man before he was found guilty of a crime." To the plea which gaolers use in defence of this practice, that "it is necessary for safe custody," an answer may be given in the words of Lord Chief Justice King (afterwards Lord Chancellor) to the wardens of the same prison, when he forbade dungeons, which they had made use of. That judge declared, "they might raise their walls higher, etc." See the report of the same committee. To what Lord King suggested of raising the walls, one might presume to add: The number of turnkeys should be increased in proportion to the number of prisoners. If the daring character of our felons should seem, after all, to make it necessary to confine them in irons, it would be right, at least, to bring them into court without irons, unless they have escaped, or attempted it before their trial.[1]

The Marquis Beccaria, in his *Essay on Crimes and Punishments*,[2] p. 75, observes that "Imprisonment, being only the means of securing the person of the accused, until he be tried . . . ought . . . to be attended with as little severity as possible." The distress occasioned by chains is increased by:

Varying the towns where quarter-sessions and assizes are held: so that prisoners have to walk in irons ten or fifteen miles to their trial: and sometimes to towns that have no prison; where numbers of both sexes are shut up together for many days and nights in one room. This occasions such confusion and distress, and such shrieks and outcries, as can be better conceived than described. Surely prisoners ought to be conveyed in carts; or else committed at first to the town where the

> Hail Patriot Band! who, scorning secret scorn,
> When Justice, and when Mercy led the way,
> Dragged the detected monsters into light,
> Wrench'd from their hand Oppression's iron rod.
>
> . . . . .
>
> Much still untouch'd remains . . .
> Much is the patriot's weeding hand requir'd.

[1] "It is the law of the land, and certainly ever hath been so, that a prisoner ought not at any time to be charged with fetters; unless the jailer be constrained to have recourse to them by the actual necessity of safe custody."—*Principles of Penal Law*, p. 187.

[2] Published in 1764, this work shares with Howard's the credit of awakening the conscience of Europe in regard to the treatment of malefactors.—[Ed.]